

22STCV38758 22STCV38758

County: los-angeles

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Department: 415

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Case Number: 22STCV38758 Hearing Date: July 16, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 16, 2026

CASE NUMBER

22STCV38758

MOTIONS

Motions to Compel Discovery Responses

MOVING PARTIES

Plaintiffs Lisa Berghagen and Tamara Harris

OPPOSING PARTY

Defendant 548 S Spring Owner LLC

MOTIONS

Plaintiffs

Lisa Berghagen ("Plaintiff") and Tamara Harris ("Harris") move to compel responses from Defendant 548 S Spring Owner LLC ("Defendant") to Form Interrogatories, set one ("FROG"), Special Interrogatories, set one ("SROG"), and Requests for Production, set one ("RPD").

Plaintiff and Harris also move to deem admitted matters specified in Requests for Admissions, set one ("RFA").

After filing this motion, Harris dismissed all claims against Defendant.

As such, the Court considers the motions with respect to Plaintiff. Defendant opposes the motions.

ANALYSIS

In its October 27, 2025 order, the Court entered the parties' stipulation to continue trial. With certain exceptions, the stipulation did not continue the discovery cut-off dates.

(See Declaration of T. Kasun Wijeyewickrema, Exhibit A.) As such, the stipulation did not move the discovery motion cut-off date with respect to this discovery. Given the prior trial date of December 9, 2025, Plaintiff's deadline to have these motions heard was November 24, 2025. (Code Civ. Proc., § 2024.020, subd. (a).) Accordingly, the Court denies the motion as untimely.

Furthermore, the Court notes Plaintiff served the FROG, SROG, RPD, and RFA on Defendant on June 29, 2023 by email on Mark Hartney of Allen Matkins. Defendant did not appear in the action until August 8, 2023. As such, Plaintiff's purported service on Defendant was improper, as Defendant had not appeared through counsel at the time of service.

Plaintiff is ordered to provide notice of the Court's ruling and to file proof of service of same.